THE DRAMA OF DEPORTATION

Ahead of the 2026 assembly election, Assam chief minister Himanta Biswa Sarma invokes an old law and pushes an identity-driven narrative to eject illegal Bangladeshis

BY **KAUSHIK DEKA**



AS ASSAM GEARS UP FOR ASSEMBLY ELECTION EARLY NEXT YEAR, Chief Minister Himanta Biswa Sarma has already set a combative tone for the campaign. In recent months, his Bharatiya Janata Party (BJP) government has launched an aggressive, and legally contentious, drive to identify and deport "illegal Bangladeshis". This move has involved reviving decades-old laws, sidelining the National Register of Citizens (NRC) and stirring a combustible mix of security, identity and religion in the state's political discourse.

Partly prompted by judicial developments but largely driven by electoral calculations, the Sarma government has intensified efforts to deport individuals suspected of being illegal immigrants, particularly those of Bangladeshi origin. What marks this phase as particularly significant is a new legal interpretation: even those included in the NRC, the Supreme Court-monitored citizenship register, are not necessarily safe from deportation if later declared foreigners by the state's quasi-judicial Foreigners Tribunals (FT) that determine citizenship status through an adversarial process. This reinterpretation quietly nullifies the political and administrative heft of the NRC exercise.

The NRC was conceived as the definitive solution to Assam's decades-old "foreigner problem", a comprehensive register that would once and for all separate genuine Indian citizens from illegal immigrants. The exercise consumed enormous resources and generated tremendous anxiety across the state before finally producing its results in 2019. However, the outcome satisfied no one. Of the 33 million applicants, 1.9 million were excluded from the final list, a number that BJP leaders, including Sarma, deemed suspiciously low.

Sarma, who was then a rising star in the BJP after his dramatic defection from the Congress in 2015, was among the NRC's most vocal critics. He demanded "reverification" of 20 per cent of names in border districts and 10 per cent elsewhere, arguing that the process had been compromised. But rather than wait for any such reverification, his government has now taken a more radical step: effectively robbing the NRC of any legal significance.

The SC handed Sarma the legal tool he needed in a May ruling in *Rafiqul Hoque vs Union of India*, in which Hoque had challenged his designation as a foreigner partly on

BJP'S PUSHBACK POLITICS

How Himanta Biswa Sarma is setting the tone for next year's assembly election

- **Legal reinterpretations, communal flashpoints and identity politics converge into a single narrative, projecting Sarma as Assam's last bulwark against infiltration and cultural erosion**
- **By sidelining the Supreme Court-backed NRC and invoking a**